

The framework publishes non-binding criteria. Each operator applies them **UNILATERALLY** — it binds no one and asks for no agreement.

Is there an agreement among operators to refuse?

NO

— independent, parallel conduct
on published criteria

Lawful. Parallel conduct without
agreement is no §1 claim (Twombly);
a unilateral refusal is lawful (Colgate).

This is the branch the framework is
built for — Appendix B is drafted
for unilateral adoption.

YES

— an actual agreement to boycott

Antitrust risk. A group boycott can be
per se illegal (Klor's); its expressive
character is no defense (Trial Lawyers);
even a "quick look" can condemn it
(Indiana Dentists).

The posture the framework never forms.